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Zareena lost four of her family to the tragedy. She married a couple of years after the disaster but her husband abandoned her. Now she is unable to perform hard labour because of exposure-related pulmonary complications. Though she desperately needs help, she has no clue whether she is entitled to compensation or rehabilitation. When the Shivraj Government allocated Rs 116 crore back to build a memorial for the disaster, Zareena gets agitated. "What use is a monument when we are starving right next to the factory?"

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from the original amount. The survivors' organisations filed a petition in the Supreme Court on March 17, 2010 for the Centre to pay up as it had undertaken to fulfilling any shortfall during the settlement with UCC in 1989. Outgoing chief justice K.G. Balakrishnan issued notices in the case on April 23, 2010. Besides, a petition is pending in the Madhya Pradesh High Court since 2004 for the inclusion of almost 40,000 victims who were left out of the claims process on technical grounds like missing files from the claims office, slight difference in name of victims in different documents or failure of illiterate or ignorant victims to file claims.

Tardy Rehabilitation

Medical rehabilitation of the victims has been a sticking point. Despite settling the claim, the Government failed to extract from the UCC its own studies on likely medical impact of exposure to MIC on victims. In 1994, the Centre suddenly

and inexplicably wound up the Indian Council for Medical Research (ICMR) project focusing on the impact of gas on the victims. While 23 reports were compiled by the ICMR, they were never made public. Till date, no medical protocol has been developed for the line of treatment of the disaster's survivors. The economic and medical rehabilitation package christened Bhopal Action Plan was run between 1993 and 1998 and extended till 2000 wherein the Centre provided Rs 258 crore for medical rehabilitation of the victims. However, insistence on building infrastructure instead of filling vacancies and providing medicines has seriously crippled the medical services provided to the victims.

The state Government claims it has spent over Rs 500 crore, including Central assistance, on the victims. However, in 1998, the gas victims filed a petition in the Supreme Court on lack of medical facilities. The petition is still alive as the Supreme Court set up an advisory and a monitoring committee. The sad state of affairs is clearly visible

from the failure of the state Government to either implement the three recommendations of the advisory committee or seven made by the monitoring committee. The post of monitoring committee's chairman has been lying vacant for the last two years, rendering any independent oversight of treatment facilities impossible.

It's been a tragedy compounding a tragedy and has blurred the question of which one is greater—the original which cost 15,000 lives and countless maimed, or the travesty of justice which has reduced the world's worst industrial disaster to a farce. Over 26 years later, the victims have been given Rs 12,410 each for the dead while the survivors get a lifetime of disability for themselves and their children, most of whom still suffer from MIC-related diseases. To rub salt into the wounds, the Indian Government has all along seemed to be on the side of the offenders. From accepting second best in the form of meagre compensation to ill-timed and facetious remarks by the minister of state for environment recently on the safety of the environment around the plant, the victims have been shortchanged at every step. There are currently 5,60,000 claims for disabilities pending before the courts, none of them addressed so far. The blunders of Bhopal never seem to end, nor does the nightmare.

ONE HAS TO WORK WITHIN THE SYSTEM, WITHIN THE FRAMEWORK OF LAW. IT IS EASY TO SPEAK TODAY, TO SWING WITH THE TIDE.

A.M. AHMADI, *Former Chief Justice, Supreme Court of India*

